

		Further Responses to Form Interrogatories. (Price Decl., ¶ 5, Ex. 1.) Previously paid monetary sanctions are not allowable costs. Plaintiff to give notice.
9	DI Overnite Investments, LLC vs. Nabal 30-2024- 01393386-CU- BT-CJC	Cross-Defendants' Demurrer to First Amended Cross-Complaint Cross-Defendants DI Overnite Investments, LLC (DIO), Joseph Varraveto (Varraveto), Renaissance Ventures LLC (Renaissance), and Douglas M. Garamoni (Garamoni) (collectively Cross-Defendants) Demurrer to the First Amended Cross-Complaint is STAYED pending the resolution of DIO's bankruptcy. The allegations against DIO are inextricably intertwined with those against Varraveto, Renaissance, Garamoni. Nabal alleges they participated in a scheme to terminate him, extorted him, and were involved in racketeering. Nabal alleges DIO and the other Cross-Defendants were acting in concert, thus, there is a substantial risk for inconsistent judgment should there be two trials. Plaintiffs' Motion to Post Bond and Further Stay the First Amended Cross-Complaint Until Such Time as the Bond is Furnished Plaintiff/Cross-Defendant DI Overnite Investments, LLC's Motion for Defendant/Cross-Complainant Philip Nabal to Post a Bond is STAYED pending the resolution of DIO's bankruptcy. Motion to Strike (anti-SLAPP) scheduled for 5/16/2025 is STAYED. CMC scheduled for 6/5/2025 is VACATED. Status Conference re Bankruptcy scheduled for 4/23/2026 at 1:30 pm. All parties are ORDERED to file a Status Report 5 days prior. Clerk to give notice.
10	National Funding, Inc. vs. BTMB Consulting Services LLC 30-2024- 01412142-CU- BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against defendants BTMB Consulting Services LLC dba Royalty Auto Spa and Ty Maggard is GRANTED. <u>First Cause of Action for Breach of Contract against BTMB Consulting Services LLC dba Royalty Auto Spa ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's

breach, and (4) resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Borrower and Plaintiff executed a Business Loan Agreement, agreement number FWC702488-ML1 (“Loan Agreement No. 1”), whereby Borrower received an original loan from Plaintiff in the principal amount of \$18,643.00. (Plaintiff’s Undisputed Material Facts (“UMF”) No. 1.) Plaintiff deposited all monies required under the terms of Loan Agreement No. 1 into the bank account for Borrower and has fully performed its obligations under Loan Agreement No. 1. (UMF Nos. 10-11.) On 5-13-24, Borrower failed to timely make its monthly payment, as required under the terms of Loan Agreement No. 1. (UMF No. 5.) Upon Borrower’s breach, Plaintiff elected to exercise its rights and remedies under Loan Agreement No. 1 and declare a breach, making the entire outstanding balance of \$18,392.15 due and payable. (UMF No. 6.) Plaintiff has demanded payment from Borrower for the amount due under Loan Agreement No. 1, but Borrower has failed to pay the amounts due under the Loan Agreement No. 1. (UMF Nos 7-8.) As a result, Plaintiff has been damaged in both the amount still due and outstanding as well as the attorneys’ fees and costs incurred in collecting under Loan Agreement No. 1.

Plaintiff has met its initial burden to produce admissible evidence on each element of the breach of contract cause of action.

The burden shifts to the Borrower to show that a triable issue of material fact exists. Borrower has not opposed the Motion.

Second Cause of Action for Breach of Guaranty against Ty Maggard (“Guarantor”):

The elements to a claim for breach of guaranty are: (1) a guarantor guaranteed payment of indebtedness of a primary obligor, (2) the primary obligor defaulted, (3) notification was given to the guarantor as to the primary obligor’s default, (4) there was nonpayment of the debt by the guarantor, and (5) damages. (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 819.)

Guarantor guaranteed the indebtedness of Borrower under Loan Agreement No. 1 (“Guaranty No. 1”). (UMF Nos. 4, 9.) Borrower defaulted on 5-13-24 by failing to timely make its monthly payment, as required under the terms of Loan Agreement No. 1. (UMF No. 5.) Despite Plaintiff’s demand, Guarantor has failed to pay the amounts due under Loan Agreement No. 1 and Guaranty No. 1. (UMF No. 8.) As a result, Plaintiff has been damaged in both the amount still due and outstanding as well as the attorneys’ fees and costs incurred in collecting under Loan Agreement No. 1.

	Plaintiff has met its initial burden to produce admissible evidence on each element of the breach of guaranty cause of action. The burden shifts to Guarantor to show that a triable issue of material fact exists. Guarantor has not opposed the Motion. <u>Third Cause of Action for Breach of Contract against Borrower:</u> Borrower and Quick Bridge Funding LLC ("Quick Bridge") executed a second Business Loan Agreement, agreement number 484-668385-9, ("Loan Agreement No. 2"), whereby Borrower received an original loan from Quick Bridge in the principal amount of \$65,300.00. (UMF No. 12.) On 11-19-23, Quick Bridge transferred all its rights, title, and interest in Loan Agreement No. 2 to Plaintiff. (UMF No. 16.) On 2-12-24, Borrower failed to timely make its weekly payment, as required under the terms of Loan Agreement No. 2. (UMF No. 17.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under Loan Agreement No. 2 and declare a breach, making the entire outstanding balance of \$74,180.80 due and payable. (UMF No. 18.) Plaintiff has demanded payment from Borrower for the amount due under Loan Agreement No. 2, but Borrower has failed to pay the amount due under Loan Agreement No. 2. (UMF Nos. 19-20.) As a result, Plaintiff has been damaged in both the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under Loan Agreement No. 2. Plaintiff has met its initial burden to produce admissible evidence on each element of the breach of contract cause of action. The burden shifts to the Borrower to show that a triable issue of material fact exists. Borrower has not opposed the Motion. <u>Fourth Cause of Action for Breach of Guaranty against Guarantor:</u> Guarantor executed and delivered to Quick Bridge a second written personal guaranty, under which he guaranteed the indebtedness of the Borrower due to Quick Bridge under Loan Agreement No. 2 ("Guaranty No. 2"). (UMF Nos. 15, 21.) On 11-19-23, Quick Bridge transferred all its rights, title, and interest in Guaranty No. 2 to Plaintiff. (UMF No. 16.) Borrower defaulted. (UMF No. 17.) Despite Plaintiff's demand, Guarantor defaulted on his guaranty by failing to pay the amounts due under Loan Agreement No. 2 and Guaranty No. 2. (UMF No. 20.) As a result, Plaintiff has been damaged in both the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under Loan Agreement No. 2. Plaintiff has met its initial burden to produce admissible evidence on each element of the breach of guaranty cause of action.
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11	V. Lynn Hodge, as Trustee of the Plaza Del Sol Real Estate Trust Under Declaration of Trust Dated February 9, 1996, as Amended, a California Revocable Trust vs. OC Media Tower, L.P. 30-2021-01227550-CU-FR-CJC	Defendants Alliant Strategic Investments II, LLC's and Shawn Horwitz's Motion for Sanctions The motion for sanctions pursuant to Code of Civil Procedure section 128.7 of defendants Alliant Strategic Investments II, LLC and Shawn Horwitz is GRANTED. Defendants request the court dismiss plaintiff's claims against them with prejudice and order plaintiff and his counsel to pay their attorney fees and costs, subject to the court's determination of those amounts upon submission of proof. Plaintiff filed his complaint on 10/22/2021 while represented by G10 Galuppo Law, APLC. Plaintiff filed the operative first amended complaint (FAC) on 6/7/2022 while represented by G10 Galuppo Law APLC's successor, G10 Law, APLC. Both pleadings named Doe defendants. The gist of the action surrounds various loans Plaza Del Sol Real Estate Trust made to defendants Michael Harrah and his affiliated companies. The loans were secured by real property located at 625 N. Grand Avenue in Santa Ana, California. A portion of the property was sold to Amazon.com Service, LLC, and a portion of the property was retained by the Harrah Defendants. Plaintiff agreed to a lower payoff of outstanding debt and a release of the Trust's security interests, believing a letter of intent (LOI) given by Alliant was the best offer received on the property. In reality, Amazon paid more than Alliant offered on the entire parcel for only a portion of the property, and plaintiff contends he never knew Amazon was a potential buyer, and had he known, the Trust would not have agreed to a lesser payoff. On 9/5/2024, almost three years following the initiation of the action, and approximately one month before the expiration of the three-year deadline to serve all remaining defendants (Code Civ. Proc., § 583.210, subd. (a)), plaintiff filed amendments to the FAC, naming Alliant as Doe 1 and Horwitz as Doe 2. The FAC alleges causes of action against "all defendants" (which presumably includes Does even though the causes of action are not expressly alleged against any particular Doe defendant) as follows: first for intentional misrepresentation / concealment; second for negligent misrepresentation / concealment; and eleventh for rescission (Civil Code § 1689) / cancellation (Civil Code § 3412) / reformation (Civil Code § 3399). The FAC also alleges a third cause of action against Does 1-50 for quiet title.